25STLC03597 25STLC03597

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Case Number: 25STLC03597 Hearing Date: July 21, 2026 Dept: 26

TENTATIVE RULING:

Plaintiff Creditors Adjustment Bureau, Inc.’s Motion for Summary Adjudication is granted with respect to the first cause of action for breach of contract.

Analysis:

On May 5, 2025, Plaintiff Creditor’s Adjustment Bureau, Inc. (“Plaintiff”) filed the instant action against Defendant Javier L. Barrera aka Javier Barrera aka Javier Barrera, Sr. (“Defendant”) for breach of contract, open book account, account stated, and reasonable value. Defendant filed an Answer to the Complaint in propria persona on July 24, 2025. On November 4, 2025, the Court granted Plaintiff’s Motion to Compel Responses to Special Interrogatories, Set One; Request for Monetary Sanctions. (Minute Order, 11/04/25.) On November 5, 2025, the Court granted Plaintiff’s Motion for Order that the Truth of Matters be Deemed Admitted; Request for Monetary Sanctions, ordering Defendant to pay Plaintiff $660.00 in sanctions. (Minute Order 11/05/25.)

Plaintiff filed the instant Motion for Summary Adjudication on April 7, 2026. The Motion was served on Defendant by electronic and first-class mail on the same day. No opposition has been filed to date.

Discussion

Allegations in the Complaint

Plaintiff's Assignor, State Compensation Insurance Fund ("SCIF") is a corporation and an insurance issuer and underwriter, and the claims herein were assigned to Plaintiff for collection only. (Compl., ¶¶1, 4.) Defendant and SCIF entered into a written agreement for SCIF to provide a policy of workers' compensation insurance to Defendant, bearing Policy Nos. 9334734-23 (covering the period of March 8, 2023 through March 8, 2024) and 9334734-24 (covering the period of March 8, 2024 through March 8, 2025), in exchange for Defendant's payment of premiums. (Id. at ¶11.) Defendants accepted the aforementioned policies and agreed to the terms and conditions therein for the payment of premiums. (Id. at ¶12.)

SCIF performed all its obligations under the Policy. (Id. at ¶13.) Defendant breached its obligations under Policy No. 9334734-23 by failing to pay the premium assessed in the amount of $4,634.86. (Id. at ¶14.) Defendant breached its obligations under Policy No. 9334734-24 by failing to pay the premium assessed in the amount of $4,613.17. (Id. at ¶15.) The premiums assessed are now due and owing, plus interest at 10 percent per annum since July 7, 2024 for Policy No. 9334734-23 and July 8, 2024 for Policy No. 9334734-24. (Id. at ¶¶3, 14, 15.) Under Cal. Insurance Code section 11760.1, subdivision (a), Defendant is liable to Plaintiff in the amount of the estimated premium for Policy Nos. 9334734-23 and 9334734-24, plus an amount equal to three (3) times Plaintiff's Assignor's estimate, in addition to the costs it incurred trying to perform an audit. (Id. at ¶¶17-18.)

Motion for Summary Adjudication

Plaintiff moves for summary adjudication of the first cause of action for breach of contract pursuant to Code of Civil Procedure section 437c. On a motion for summary judgment or adjudication of a particular cause of action, a moving plaintiff must show that there is no defense by proving each element of the cause of action entitling the party to judgment on that cause of action. (Code Civ. Proc., § 437c, subd. (p)(1).) Then the burden shifts to the defendant to show that a triable issue of one or more material facts exists as to that cause of action or a defense. (Code Civ. Proc., § 437c, subd. (p)(1).) Additionally, in ruling on the Motion, the Court must view the "evidence [citations] and such inferences [citations], in the light most favorable to the opposing party." (Intrieri v. Superior Court (2004) 117 Cal.App.4th 72, 81 [citing Aguilar v. Atlantic Richfield Co. (2001) 25 Cal.4th 826, 843].)

Plaintiff’s Initial Burden of Proof

An action for breach of contract must demonstrate the following elements: (1) the existence of the contract, (2) the plaintiff’s performance or excuse for nonperformance, (3) the defendant’s breach; and (4) the resulting damages to the plaintiff. (D’Arrigo Bros. of California v. United Farmworkers of America (2014) 224 Cal.App.4th 790, 800.) Plaintiff moves for summary adjudication on the grounds that there are no disputed facts as to Defendant’s liability for breach of the insurance agreements.

In support of its Motion for Summary Adjudication of the breach of contract action, Plaintiff presents the following facts as undisputed. SCIF issued Workers’ Compensation Insurance Policy No. 9334734-23 to Defendant for the period of March 8, 2023 through March 8, 2024. (Motion, Separate Statement, Fact No. 1; Inniss Decl., ¶7 and Exh. 3.) SCIF sent Defendant letters on March 11, 2024 and March 25, 2024, requiring his cooperation with the audit for the 2023 policy terms. (Motion, Separate Statement, Fact Nos. 3-4; Inniss Decl., ¶¶8-9 and Exhs. 4-5.) When no audit was completed, SCIF provided Defendant with an Estimated Final Premium statement for the 2023 policy period on June 10, 2024, showing the balance of $4,634.86. (Motion, Separate Statement, Fact No. 5; Inniss Decl., ¶10 and Exh. 6.)

SCIF issued Workers’ Compensation Insurance Policy No. 9334734-24 to Defendant on March 8, 2024 . (Motion, Separate Statement, Fact No. 8; Inniss Decl., ¶12 and Exh. 8.) SCIF sent Defendant letters on March 25, 2024 and April 8, 2024, requiring his cooperation with the audit for the 2024 policy. (Motion, Separate Statement, Fact Nos. 9-10; Inniss Decl., ¶¶8-9 and Exhs. 9-10.) When no audit was completed, SCIF provided Defendant with an Estimated Final Premium statement for the 2024 policy period on June 12, 2024, showing a balance of $4,613.17. (Motion, Separate Statement, Fact No. 11; Inniss Decl., ¶15 and Exh. 11.)

On June 11, 2024, SCIF mailed Defendant an invoice for $9,248.35 due on July 7, 2024. (Motion, Separate Statement, Fact No. 12, Inniss Decl., ¶16 and Exh. 12.) SCIF assigned the 2023 policy account to Plaintiff on September 13, 2024, and on the same day, Plaintiff’s counsel wrote Defendant regarding the need to complete the audit and the risk of treble damages if he failed to comply. (Minute Order, Separate Statement, Fact Nos. 6-7; Inniss Decl., ¶20; Aposhian Decl., ¶2 and Exh. 1.) SCIF assigned the 2023 and 2024 policy accounts to Plaintiff on September 13, 2024, and on the same day, Plaintiff's counsel wrote to Defendant regarding the need to complete the audit and the risk of treble damages if he failed to comply. (Minute Order, Separate Statement, Fact Nos. 6-7, 15-16; Inniss Decl., ¶20; Aphosian Decl.[1], ¶2 and Exh. 1.)

On November 5, 2025,[2]
the Court granted Plaintiff's Motion for Order that the Truth of Matters be Deemed Admitted; Request for Monetary Sanctions and awarded it sanctions of $660.00. (Motion, Separate Statement, Fact No. 19; Aposhian Decl., ¶5 and Exh. 4.)
Plaintiff has been damaged as a result of Defendant's breach of the insurance policies in the amount of $9,248.35. Under Insurance Code section 11760.1, Plaintiff is entitled to $27,744.09 (triple the estimated invoice). (Ins. Code, § 11760.1, subd. (a) ["the employer shall be liable to pay to the insurer a total premium for the policy equal to three times the insurer's then-current estimate of the annual premium on the expiration date of the policy".].)

This evidence carries
Plaintiff's initial burden of proof demonstrating the lack of any triable issues of material fact regarding the existence of the insurance policy agreements between the parties, Plaintiff's performance of its obligations under the Policies, Defendant's breach of the same, and Plaintiff's resulting damages. The burden now shifts to Defendant to demonstrate the existence of triable issues of material fact. Defendant, however, has filed no opposition to the instant Motion.

Therefore, on the cause of action for breach of contract, Plaintiff is entitled to $27,744.09, plus interest at the rate of 10% per annum on the $4,634.86 as of July 7, 2024 and $4,613.17 as of July 8, 2024, and costs according to proof. (Motion, Separate Statement, Fact No. 21; Aposhian Decl., ¶7; Code Civ. Proc., § 1032, subd. (b).)

Conclusion

Plaintiff Creditors Adjustment
Bureau, Inc.'s Motion for Summary Adjudication is granted with respect to the first cause of action for breach of contract.

Moving party to give notice.

[1]
The Aposhian declaration is incorrectly referred to as the “Omrani” declaration in the separate statement.

[2]
The separate statement incorrectly refers to the ruling date as August 20, 2025. The correct date (November 5, 2025) is set forth in the supporting exhibits.